

Tentative Rulings for September 10, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary
Crystal Marias at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVRI2104463	BROCKMEIER VS FUENTES	MOTION FOR NEW TRIAL BY JESYKA ERYNNE BROCKMEIER

Tentative Ruling:

DENY

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504126	CARONNA VS CALIFORNIA BAPTIST UNIVERSITY	MOTION TO COMPEL ANSWER/RESPONSE TO FORM INTERROGATORIES, ANSWER/RESPONSE TO SPECIAL INTERROGATORIES

Tentative Ruling:

DENY

As the moving party, Plaintiff bears the burden of showing good cause for the discovery sought by demonstrating relevance and specific facts justifying discovery. Here, Plaintiff fails to set forth specific facts demonstrating good cause as required by CCP § 2031.310. Plaintiff's belief that some documents exist because she observed faculty completing forms during recitals is insufficient good cause. In addition, Plaintiff fails to articulate how the documents are directly relevant to her claims and defenses. Even assuming that Plaintiff had met her burden, Defendant has provided code compliant, verified responses pursuant to CCP § 2031,210(a).

Plaintiff is sanctioned in the reduced sum of \$1,200 (\$400/hour x 3 hours), payable to defense counsel within 30 days.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505607	FUNDERS APP, LLC VS CONSTRUCTION SPECIALTIES OF CALIFORNIA, INC.	MOTION TO ENFORCE SETTLEMENT AGREEMENT

Tentative Ruling:

GRANT

Plaintiff to submit a Proposed Judgment within 30 days.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2602736	MENDEZ VS ROA	DEMURRER

Tentative Ruling:

SUSTAIN the demurrer to the 5th, 7th and 8th causes of action, with 30 days leave to amend. For Fraud/Concealment, Plaintiff fails to allege sufficient facts. Plaintiff's statement that she "reasonably relied" is conclusory. Plaintiff must provide specific statements, dates, communications, omissions, reliance, and damages. For the court to impose a Constructive Trust (7th cause of action), Plaintiff must prove that the Defendant's acquisition of Plaintiff's property was wrongful, but Plaintiff, in paragraph 74 of the Complaint, refers only to "property belonging to Decedent by wrongful acts." This is not sufficient to identify the specific res or a right to that res. A cause of action for Unjust Enrichment will not lie where there is an express binding agreement between the parties that defines the parties' rights. Here, in paragraph 76 of the Complaint, Plaintiff alleges only that "Defendants received benefits at Decedent's expense under circumstances making it unjust for Defendants to retain such benefits." Plaintiff does not allege the lack of an enforceable agreement, Defendant's receipt of a specific benefit, or the circumstances requiring restitution.

All other causes of action have been sufficiently pled. OVERRULE the demurrer.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2602736	MENDEZ VS ROA	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

DENY Defendant's request to strike paragraphs 53, 57, and causes of action 4 and 5. The elder abuse-neglect claims and the elder financial abuse claims are sufficient to support punitive damages.

DENY the request for a STAY.

6.

CASE #	CASE NAME	HEARING NAME
CVRI2507444	LIVINGSTONE VS MURRIETA HOT SPRINGS RESORT LP	MOTION TO STRIKE COMPLAINT

Tentative Ruling:

GRANT Defendant Murrieta Hot Springs Resort, L. P's ("Resort") Motion to Strike the punitive damages allegations in the First Amended Complaint (FAC), Prayer for Relief, "B", with 30 days leave to amend.

The Resort now moves to strike the prayer for punitive damages on the grounds that the pleading contains no material facts supporting an award of punitive damages against the Resort. The only causes of action against the Resort are the 1st cause of action (Negligence) and the 2nd cause of action (Negligent Supervision, Hiring or Retention).

Where the defendant is a corporate employer, punitive damages may not be awarded based on the acts of an employee unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which punitive damages are sought. Civ. Code § 3294(b). The conduct attributed to Defendant Deyvon Cobb does not, without more, expose the Resort to punitive damages on the negligence-based causes of action. Even gross negligence and recklessness are not enough to support a claim for punitive damages.

Here, Plaintiff's allegations that the Resort "knew or should have known" that Cobb was unfit (FAC Paras. 37-39) and that the Resort's "officers, directors, and/or managing agents...ratified, accepted the benefits of, condoned, lauded, acquiesced, authorized and otherwise approved of the conduct alleged herein" (FAC Para.10) do not supply the ultimate facts required by Civ. Code § 3294(b). The FAC does not identify any officer, director, or managing agent of the Resort. It does not allege what any such person knew about Cobb before the incident. And it does not allege any facts describing an act of authorization or ratification after the incident. Ratification and managing agent status are ultimate facts that must be pled with supporting factual allegations, not simply asserted in the conjunctive as legal conclusions. While it is true that the "clear and convincing" burden of proof is a trial standard, that does not mean the Plaintiff does not have to allege in the pleading ultimate facts that, if proven, would support an award for punitive damages.